

		Pursuant to California Rules of Court, rule 3.1348(a), the subsequent service of sufficient discovery responses does not render Petitioner's request for monetary sanctions moot. The court notes that the instant motion is largely duplicative of the motion heard on 8/19/26 (ROA 39). Thus, the court reduces the award of sanctions requested to \$1,272.00 (\$424 p/h x 3 hours). The motion to compel is DENIED as moot. The request for sanctions is GRANTED. The court imposes reasonable sanctions of \$1,272.00 jointly and severally against Respondent and her counsel of record, Jeany Duff, payable to Hamilton & Associates, APC within 30 days of notice of this ruling, extended for method of service, or any later date as agreed upon by the parties in writing. Counsel for moving party is ordered to serve notice of ruling.
4	Conrecode-Trust 30-2025-01503820	DEMURRER (ROA 15) More than one individual involved in this case share a surname. For clarity, the court is using first names without intending any disrespect. (<i>Morgan v. Superior Court</i> (2018) 23 Cal. App. 5th 1026. fn.1) Trustee Emmett S. Conrecode (the "Trustee") demurrers to the "Petition Concerning the Internal Affairs of a Trust" (ROA 2) filed by Petitioner Virginia Estate & Trust Law, as successor trustee of the Edward J. Conrecode Revocable Trust, ("Petitioner") in its entirety for lack of standing. The demurrer is OVERRULED. The Petition alleges the following pertinent facts: - Edward J. Conrecode, Sr. ("Edward, Sr.") was the trustor of the Edward J. Conrecode Trust dated 4/10/89 and amended 6/28/90 (the "Subject Trust"); - The Subject Trust owned real property located in Costa Mesa, California (the "Property"); - The Subject Trust provides that upon Edward, Sr.'s death, the assets of the Subject Trust shall be equally distributed to the Trustee, Edward J. Conrecode, Jr. ("Edward, Jr."), and James M. Conrecode ("James"). - The Subject Trust provides that "if all of the Trustor's children and their issue should die prior to the final distribution of the Trust Estate, all the Trust Estate not disposed of" shall be distributed by intestate succession;

- Edward, Sr. died on 11/9/94;
- James died 1/21/17;
- Edward, Jr. died on 11/8/24;
- Edward, Jr. was the trustor of the Edward J. Conrecode Revocable Trust dated 10/31/24 (the "EJC Trust");
- Petitioner is the successor trustee of the EJC Trust; and
- The Trustee has refused to distribute Edward, Jr.'s share of the trust assets to the EJC Trust because the Trustee claims that he is entitled to all of the trust assets since Edward, Jr. and James did not survive final distribution.

The Petition requests that the court ascertain whether the EJC Trust is a beneficiary of the Subject Trust as the successor in interest to Edward, Jr.

Attached as Exhibits to the Petition (ROA 2) are copies of the EJC Trust, a Schedule of Assets for the EJC Trust, and Edward, Jr.'s will.

The Schedule of Assets for the EJC Trust lists any interest that Edward, Jr. had in the Property, as well as any interest Edward, Jr. had in the Subject Trust. Edward, Jr.'s will is a pour over will, pouring the residue of his estate into the EJC Trust.

In this demurrer, Trustee argues that Petitioner has no standing because Petitioner is only a successor trustee of the EJC Trust and is not a Trustee or beneficiary of the Subject Trust. Trustee appears to misconstrue the basis of Petitioner's interest in the Subject Trust.

On the facts alleged, Edward, Jr. became a vested beneficiary of the Subject Trust when Edward, Sr. passed away (as did James). The EJC Trust is a successor in interest to Edward, Jr. (Code Civ. Proc. § 377.11.) Petitioner's standing is based on its status as the trustee of the EJC Trust which is the successor in interest to Edward, Jr. who was a vested beneficiary of the Subject Trust.

Further, pursuant to section 3.03(b) of the Subject Trust, the assets pass through intestate succession only if "all" of Edward, Sr.'s children and their issue die before final distribution. Trustee is a child of Edward, Sr. who is still living and the final distribution of the Trust has not happened (even though Edward, Sr. died over 30 years ago). Thus, section 3.03(b) is inapplicable.

	The issue before the court pursuant to the Petition is whether the EJC Trust is entitled to Edward, Jr.'s share of the trust at final distribution. Petitioner has standing to bring such petition before the court as a successor in interest to a beneficiary (i.e., as successor in interest to Edward, Jr.) Furthermore, Petitioner has standing to bring the Petition as an "interested person" under Probate Code section 48. In the recent case of <i>Hamlin v. Jendayi</i> (2024) 105 Cal.App.5th 1064, the court rejected the idea that only a beneficiary or trustee of a trust can bring a petition under Probate Code section 17200. It summarized standing in probate proceedings, as follows: We begin with the general observation that standing for purposes of the Probate Code is a fluid concept dependent on the nature of the proceeding before the trial court and the parties' relationship to the proceeding, as well as to the trust (or estate)." (<i>Arman v. Bank of America</i> (1999) 74 Cal.App.4th 697, 702–703, 88 Cal.Rptr.2d 410.) In general, "[t]o have standing, a party must be beneficially interested in the controversy, and have "some special interest to be served or some particular right to be preserved or protected." [Citation.] This interest must be concrete and actual, and must not be conjectural or hypothetical." (<i>Limon v. Circle K. Stores, Inc.</i> (2022) 84 Cal.App.5th 671, 699, 300 Cal.Rptr.3d 572.) Interested persons have legal standing to contest the provisions of a trust. (<i>Schwan v. Permann</i> (2018) 28 Cal.App.5th 678, 698, 239 Cal.Rptr.3d 427.) The Probate Code defines " 'interested person' " broadly as including an "[a]n heir, devisee, child, spouse, creditor, beneficiary, and any other person having a property right in or claim against a trust estate or the estate of a decedent which may be affected by the proceeding" (§ 48, subd. (a)), and its meaning "may vary from time to time and shall be determined according to the particular purposes of, and matter involved in, any proceeding" (id., subd. (b)). [. . .] Consequently, the probate court "has flexibility in determining whether to permit a party to participate as an interested party" and may give standing to " 'anyone having an interest in an estate which may be affected by a probate proceeding.' " (<i>Estate of Sobol</i> (2014) 225 Cal.App.4th 771, 782, 170 Cal.Rptr.3d 569 (<i>Sobol</i>)).
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		(<i>Id.</i> at p. 1074.) Here, the EJC Trust, as successor in interest to Edward, Jr., is asserting a claim against the Subject Trust for Edward, Jr.'s vested interest therein. Moreover, the EJC Trust will be affected by the court's determination of whether the EJC Trust is entitled to Edward, Jr.'s vested interest in the Subject Trust. Based on the foregoing, the court finds that the Petition alleges facts sufficient to establish Petitioner's standing to seek the relief requested. The court makes no finding on the merits of the Petition. The Trustee shall file and serve a responsive pleading to the Petition (ROA 2) within 10 days of notice of this ruling, extended for method of service. Counsel for Petitioner is ordered to serve notice of ruling.